

<u>Convictions</u>	<u>Sentences</u>
<u>Under Section:</u> 302(b) PPC	“ Death ” as <i>Taz’ir</i> (for committing <i>Qatl-e-Amd</i> of Fozia Bibi) with payment of compensation Rs.5,00,000/- to the legal heirs of the deceased under Section: 544-A Cr.P.C. recoverable as arrears of land revenue and in default of payment of compensation amount to further undergo S.I. for six months.

<u>Under Section:</u> 324 PPC	“ Seven Years’ Rigorous Imprisonment ” with fine of Rs.50,000/- and in default thereof to further undergo S.I. for three months.
<u>Under Section:</u> 337 A(i) PPC	“ One Year ” imprisonment with payment of “ Daman ” amounting to Rs.20,000/- to be paid to Liaqat Ali (injured).
<u>Under Section:</u> 337 F(i) PPC	“ One Year ” imprisonment with payment of “ Daman ” amounting to Rs.20,000/- to be paid to Liaqat Ali (injured).
<u>Under Section:</u> 337 F(ii) PPC	“ Two Years ” imprisonment as <i>Taz’ir</i> with payment of “ Daman ” amounting to Rs.30,000/- to be paid to Liaqat Ali (injured).

3. Brief facts, as per application (Ex.PB) moved by Muhammad Amin (complainant/PW-3) to Sarfraz Ahmad, 225/HC of Police Station: Mangtanwala, District Nanakana Sahib (PW-2) on 31.08.2020 for registration of the case are that he is resident of Maliwal and does the work of sale of “Fish”; on 31.08.2020, wife of Muhammad Amin (complainant/ PW-3) was going to the tube-well of Niamat Bhatti for washing the clothes, when she reached near Government Primary School for Boys Maliwal, Karamat Ali and Abdul Hameed along with one unknown in furtherance of their common intention launched attack upon wife of the complainant; on hearing hue and cry, complainant along with Liaqat Ali, Allah Rakha and Allah Ditta residents of Maliwal reached near Government Primary School for Boys, Maliwal; Karamat Ali inflicted successive blows of knife at different parts of the body of wife of the complainant, due to which she fell in paddy crop in severe injured condition; Liaqat Ali attempted to catch the accused but Karamat Ali also injured Liaqat Ali with knife blows and fled away from the spot along with his companions; complainant made call at 1122, upon which Rescue Staff got boarded Fozia Bibi and Liaqat Ali in severe injured condition on the vehicle and proceeded for DHQ Nankana; wife of the complainant succumbed to the injuries on the way whereas Liaqat Ali was referred from DHQ Hospital Nankana Sahib to Jinnah Hospital, Lahore.

Motive behind the occurrence was that earlier the complainant got lodged FIR No.321/2020 under Sections: 376, 396-A PPC at Police Station: Mangtanwala against Karamat Ali but compromise was arrived at between

them subsequently; Karamat Ali nourished grudge and committed murder of wife of the complainant along with his companions.

On the basis of application (Ex.PB), F.I.R. (Ex.PA) was chalked out by Sarfraz Ahmad, 225/HC (PW-2).

4. After completion of investigation, challan report under Section: 173 Cr.P.C. was submitted in the Court against the appellant by placing his name in column No.3 of the same; appellant was formally charge sheeted, however, he pleaded not guilty and claimed trial whereupon prosecution evidence was summoned; after recording of prosecution evidence, appellant was examined under Section: 342 Cr.P.C. but he refuted the allegations levelled against him; he opted not to appear as his own witness under Section: 340(2) Cr.P.C., however, produced some documents in his defence; then trial court after hearing learned counsel for the parties, passed the impugned judgment, whereby appellant was convicted and sentenced as mentioned above.

5. Learned counsel for the appellant has submitted that convictions recorded against and sentences awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/ misreading of evidence, therefore, same are not sustainable in the eyes of law. Learned counsel for the appellant finally prayed for acquittal of the appellant.

6. Conversely, learned Additional Prosecutor General and learned counsel for the complainant have supported the impugned judgment and prayed for dismissal of the appeal.

7. **Arguments heard. Record perused.**

8. It has been noticed that as per case of prosecution, occurrence in this case took place on 31.08.2020 at 10:30 a.m. near Government Primary School for Boys Maliwal situated within the area of Maliwal at a distance of 13-Kilometers from the Police Station as per Column No.4 of the First Information Report (FIR/Ex.PA) whereas matter was reported to the Police by Muhammad Amin (complainant/PW-3) through written application (Ex.PB) in the Police Station at 05:40 p.m. on 31.08.2020 and on the basis of same, *vide* Rapt No.36, First Information Report (Ex.PA) was recorded at 05:40 p.m. at the Police Station, so there is delay of seven hours and ten minutes in reporting the matter to the police by the complainant through

aforementioned application (Ex.PB). As per application for registration of the case (Ex.PB), after the occurrence, immediately call was made at 1122, Rescue Staff reached at the spot, Fozia Bibi (wife of the complainant/now deceased of the case) and Liaquat Ali in injured condition were boarded on the vehicle and proceeded for DHQ Hospital, Nankana; Fozia Bibi (wife of the complainant) succumbed to the injuries on the way whereas Liaquat Ali was referred from DHQ Hospital, Nankana to Jinnah Hospital, Lahore, however, it is relevant to mention here that any document to show that though Fozia Bibi succumbed to the injuries on the way to the hospital yet she was taken to DHQ Hospital, Nankana Sahib where after examination, she was declared as dead by any Medical Officer, rather in the Inquest Report (Ex.PH), it is categorically mentioned in Columns No.1 and 2 of said report, which are meant for recording that where she died or her dead body was available and distance of the place where she died or her dead body was found from the Police Station, “within the area of Maliwal” and Columns No.1 and 2 of the Inquest Report are hereby scanned below:-

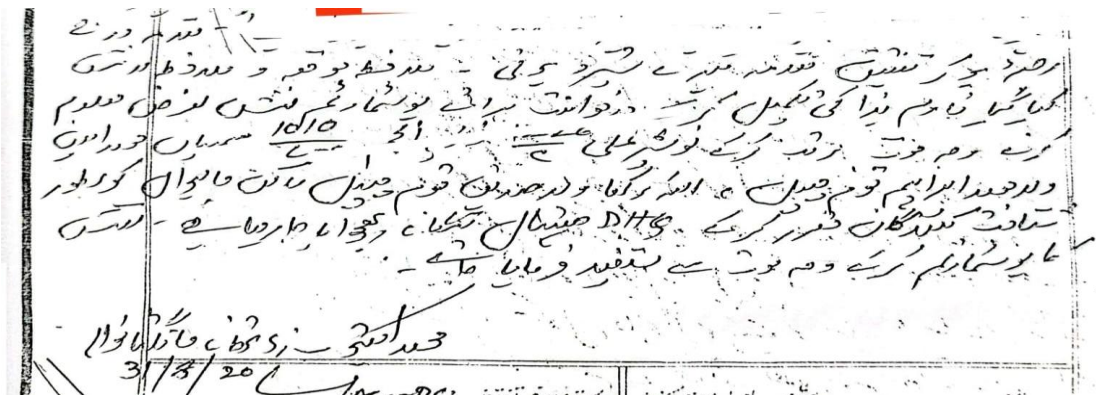
Ex-PH

31/3/20

بجہ رقبہ مالی وال	1- نام مقام جہاں مرگ واقع ہوئی۔ یا نعش بردار ہوئی درجہ بندی کے مطابق کرو
بجہ رقبہ مالی وال 13 کلومیٹر طویل از تحصیل	2- تمام دستاویز دسترس میں نہ ہونے کے علاوہ جہاں مرگ توڑا گیا آئی یا نعش بردار ہوئی

which reflects that she was never taken to DHQ Hospital, Nankana or any other hospital rather she died within the area of Maliwal and her dead body was even available in the area of Maliwal at a distance of 13-Kilometers from the Police Station. It goes without saying that as per Column No.4 of the FIR (Ex.PA), distance between the place of occurrence and the Police Station is 13-Kilometers within the area of Maliwal and when it is read with Column No.2 of the Inquest Report wherein it is mentioned that distance of the place where she died or her dead body was available is 13-Kilometers from the Police Station in the area of Maliwal, then it leads to the irresistible conclusion that her dead

body was available at the place of occurrence. Furthermore, in Column No.2 of the Inquest Report (Ex.PH), it has not been mentioned that her dead body was available on the way to the hospital or in any hospital. Needless to add that it has been mentioned in the Inquest Report (Ex.PH) by Muhammad Yaqoob, S.I./Investigating Officer of the case (PW-9) that after registration of the case, he inspected the spot, examined the dead body, prepared relevant forms and while preparing application for postmortem examination, sent the same to DHQ Hospital, Nankana Sahib for postmortem examination of the deceased and relevant portion of Inquest Report (Ex.PH) from Page No.173 of the Paper Book is hereby scanned below:-



It is also relevant to mention here that as per Medicolegal Examination Certificate of Liaqat (injured witness/PW-4) i.e. Ex.PN and Ex.PN/1, he was brought in the hospital by Police on 31.08.2020 at 03:10 p.m. and relevant portion of the statement of Dr. Ghulam Farid (PW-7) is hereby reproduced as under:-

*“On 31.08.2020 I was posted at DHQ Hospital Nankana Sahib and on the same day at about 03:10 PM Liaqat injured was produced before me with the history of being beaten up by one person carrying chaqu on 31.08.2020 between 12:00/01:00Pm at Maliwala PS Mangtanwala. The injured was clad in pink colour Shawlar Qameez and white vest. Clothes were torn and stained with mud and blood and corresponding holes were present. Injured was well built and well orientated and fully conscious with 15/15 level. **I attended injured Liaqat s/o Aslam brought by police.**”*

(emphasis added)

So if Liaqat Ali was taken to hospital by the Police and name of Muhammad Yaqoob, S.I.(PW-9) is mentioned in Medicolegal Examination Certificate (Ex.PN/Ex.PN/1), then it is crystal clear that Police was having knowledge about the occurrence at least prior to 03:10 p.m. but why First Information

Report (Ex.PA) was not recorded till 03:10 p.m., has not been clarified by the prosecution. Perusal of Medicolegal Examination Certificate (Ex.PN/ Ex.PN/1) of Liaqat Ali further reveals that in the Medicolegal Examination Certificate, date of Police Docket: Rapt No.14 dated: 31.08.2020 is mentioned but said Rapt has never been produced by the prosecution before the court; meaning thereby that it has been withheld/ suppressed by the prosecution and presumption would be that same has been suppressed as it was not going to support the case of prosecution and in this regard, article 129(g) of the Qanoon-e-Shahadat Order, 1984 can be advantageously referred. So neither any record of 1122 nor any staff of Rescue-1122 has been produced by the prosecution to prove that Fozia Bibi and Liaqat Ali were immediately boarded in the vehicle for taking to DHQ Hospital, Nankana, therefore, there is unexplained delay on the part of the prosecution regarding registration of the case after the occurrence.

It is well settled that when there is delay in reporting the incident to the police, then prosecution is under obligation to explain such delay and failure to do that will badly reflect upon the credibility of prosecution version. In this regard, guidance has been sought from the case of **“Mst. ASIA BIBI versus The STATE and others” (PLD 2019 Supreme Court 64)**; relevant portion from paragraph No.29 of said case law is hereby reproduced: -

“There is no cavil to the proposition, however, it is to be noted that in absence of any plausible explanation, this Court has always considered the delay in lodging of FIR to be fatal and casts a suspicion on the prosecution story, extending the benefit of doubt to the accused. It has been held by this Court that a FIR is always treated as a cornerstone of the prosecution case to establish guilt against those involved in a crime; thus, it has a significant role to play. If there is any delay in lodging of a FIR and commencement of investigation, it gives rise to a doubt, which, of course, cannot be extended to anyone else except to the accused...”

Furthermore, though as per FIR (Ex.PA), application for registration of the case was received from Muhammad Amin (complainant/PW-3) at 05:40 p.m. and FIR was recorded at 05:40 p.m. yet it is noteworthy here that Muhammad Amin complainant while appearing as PW-3 during trial of the case stated in categorical terms during cross-examination that he reached Police Station at about 12:00 a.m. (night) on the day of occurrence and

thereafter proceedings regarding the occurrence were conducted; relevant portion of the statement of Muhammad Amin (complainant/PW-3) in this regard is hereby reproduced as under:-

“I reached PS at about 12:00 am of night on the day of occurrence thereafter all the proceedings in connection of this occurrence were conducted.”

As per statement of Dr. Anam Saleem (PW-8), dead body of Fozia Bibi (deceased of the case) was received in the dead house on 31.08.2020 at 08:30 p.m. whereas autopsy was conducted on the next day i.e. 01.09.2020 at 10:00 a.m. So, reason for delay in conducting autopsy was that police papers were received at 09:00 a.m. on 01.09.2020; relevant portion of the statement of PW-8 in this regard is hereby reproduced as follows:-

“On 01.09.2020 I was posted at DHQ Hospital Nankana Sahib. According to record the dead body of deceased Fozia Bibi was received in dead house on 31.08.2020 at 08:30 PM brought by Rafaqat Ali 1104-C. It was a dead body of deceased Fozia Bibi wife of Muhammad Amin aged about 30/32 years, caste Chubail, r/o Maliwal. The complete police papers were received at 09:00 am on 01.09.2020 and I conducted the autopsy on the same day at about 10:00 am.”

meaning thereby that as per own case of prosecution, occurrence took place at 10:30 a.m. on 31.08.2020 whereas postmortem examination over dead body of the deceased was conducted on the next day at about 10:00 a.m. i.e. after the delay of 23½ hours.

This state of affairs reflects that none of the cited eye witnesses including the complainant was present at the “time & place” of occurrence and time has been consumed for procuring, inducing and engaging the witnesses, tailoring story for the case of prosecution and then registering the case in its present form after much delay and in above scenario, First Information Report (crime report), which is cornerstone of the case of the prosecution, cannot be termed as promptly recorded and such sort of FIR cannot provide any support to the case of prosecution rather superstructure i.e. case of prosecution raised on the basis of such sort of FIR is bound to fall and in this regard, cases of **“HAROON SHAFIQUE versus The STATE and others”**(2018 SCMR 2118), **“MUHAMMAD RAFIQUE alias FEEQA versus The STATE”** (2019 SCMR 1068), **“SUFYAN NAWAZ**

and another versus The STATE and others” (2020 SCMR 192) and **“MUHAMMAD ADNAN and another versus The STATE and others”** (2021 SCMR 16) can be safely referred.

So far as ocular account in this case is concerned, same consists of the statements of Muhammad Amin (complainant/PW-3), Liaqat Ali (PW-4), Allah Ditta (PW-6) and Allah Rakha (give up PW). None of them was having residence or job/business place at, adjacent or around the place of occurrence as per site plan of the place of occurrence prepared by the Investigating Officer of the case {Ex.P2 (copy whereof is available at pages No.182-183 of the Paper-book)} as well as site plan of place of occurrence prepared by draftsman {Ex.PM (copy whereof is available at pages No.204 to 208 of the Paper-Book)}, hence they were “chance witnesses” and were thus required to establish valid, cogent, plausible and acceptable reason to prove their presence at the “time & place” of occurrence, however, they could not offer any valid reason appealing to common prudent mind to establish their presence at the “time & place” of occurrence.

In above scenario, evidence of cited witnesses i.e. Muhammad Amin (complainant/PW-3), Liaqat Ali (PW-4) and Allah Ditta (PW-6), who could not establish any valid reason/cause regarding their stated presence at the stated time, at the place of occurrence, is “**suspect**” evidence and cannot be accepted without pinch of salt; guidance in this regard has been sought from the case of “**Mst. SUGHRA BEGUM and another vs. KAISER PERVEZ and others**” (SUPRA) and relevant portion from paragraph No.14 of said case law is hereby reproduced: -

“14. A chance witness, in legal parlance is the one who claims that he was present on the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence and normal course of events, he was not supposed to be present on the spot but at a place where he resides, carries on business or runs day to day life affairs. It is in this context that the testimony of chance witness, ordinarily, is not accepted unless justifiable reasons are shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law would operate about his absence from the crime spot. True that in rare cases, the testimony of chance witness may be relied upon, provided some convincing explanations appealing to prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.”

Further guidance on the subject has been sought from the case of **“MUHAMMAD ASHRAF *alias* ACCHU versus The STATE” (2019 SCMR 652)**, **“Mst. MIR and another versus The STATE” (2020 SCMR 1850)** and **“SARFRAZ and another versus The STATE” (2023 SCMR 670)**.

Though as per case of prosecution contained in application for registration of the case (Ex.PB), Fozia Bibi was going to tube-well of Niamat Bhatti for washing the clothes and when she reached near Government Primary School for Boys, Maliwal, she was attacked by the assailants and injuries were inflicted upon her body over there, however, site plans of the place of occurrence prepared by the Investigating Officer (Ex.P2) as well as by draftsman (Ex.PM) clearly show that any bloodstained earth was not available near Government Primary School for Boys, Maliwal rather as per site plans (Ex.P-2 and Ex.PM mentioned above), same was available in the paddy crop of Ch. Niamat Ali and further perusal of site plan (Ex.PM) reflects that dishonest improvements were introduced by the prosecution while mentioning in the site plan that she was attacked at front of premises of Government Primary School for Boys, Maliwal, however, uplifted from there by the accused persons and taken to the land of Nimat Ali where she was given blows with knife and got injured but nothing like that was mentioned in the application for registration of the case (Ex.PB) and since no bloodstained earth was available in front of premises of Government Primary School for Boys, Maliwal, therefore, said dishonest improvement was introduced for justifying presence of bloodstained earth in the land of Niamat Ali. Furthermore, any bloodstained earth from the place where Liaqat Ali (injured/PW-4) sustained injuries has also not been secured, hence stated place of occurrence where Fozia Bibi was attacked upon and given injuries i.e. near Government Primary School for Boys, Maliwal could not be established due to non-availability of any blood over there, similarly, any place where Liaqat Ali (injured/PW-4) received injuries could not be established because presence of his blood was neither shown in the site plan of place of occurrence nor his blood was secured during investigation.

It is also worth mentioning here that if according to application for registration of the case (Ex.PB), Liaqat Ali was severely injured and

immediately after the occurrence, call was made at 1122, staff of Rescue-1122 reached at the spot and he along with Fozia Bibi in severe injured condition departed to DHQ Hospital, Nankana and occurrence took place at 10:30 a.m., then why Liaqat Ali (injured/PW-4) did not reach immediately (within reasonable time) to DHQ Hospital, Nankana Sahib and why he reached there at 03:10 p.m. and that too in the company of police i.e. Muhammad Yaqoob, S.I./Investigating Officer of the case (PW-9), prosecution is silent in this regard rather remained fail to explain the same.

Perusal of Medicolegal Examination Certificate Ex.PN/1 (copy whereof is available at Page No.178 of the Paper-Book) reveals that three injuries were noted on the body of Liaqat Ali (injured) by the Medical Officer; injury No.1 was declared as “**Jurh Ghayr Jaifah Badi’ha**” attracting offence under Section: 337-F (ii) PPC, injury No.2 was declared as “**Jurh Ghayr Jaifah Damihah**” attracting offence under Section: 337-F(i) PPC and injury No.3 was declared as “**Shajjah-i-Khafifah**” attracting offence under Section: 337-A(i) PPC; it has been mentioned in Ex.PN/1 that Liaqat was well oriented at the time of his examination and he gave the history to the Medical Officer that he was beaten up by one person carrying dagger (Chaku) on 31.08.2020 between 12:00/01:00 p.m. at Maliwal, Police Station: Mangtanwala; relevant portion of the Medicolegal Examination Certificate of Liaqat (injured) is hereby scanned below:-

Teaching /DHQ Hospital/ RHC	Book Number	Serial No.	MLC No.	Page No.
Brief History: History of beaten up one person carrying dagger (Chaku) on 31/8/20 between 12-1 PM at Maliwal Thana Mangtanwala.				1099/20

Dr. Ghulam Farid (PW-7), who medically examined Liaqat Ali in injured condition also categorically stated aforementioned history regarding receiving of injuries by Liaqat Ali at 12:00/01:00 at Maliwal, Police Station: Mangtanwala. Said Medical Officer (PW-7) further stated that he mentioned true words of injured Liaqat Ali in the history of aforementioned injured and it is further clarified that name of person i.e. assailant was not mentioned by Liaqat Ali in said history mentioned in the Medicolegal Examination

Certificate and relevant portion of statement of the Doctor (PW-7) in this regard is hereby reproduced as follows:-

“The brief history on the MLC is the true words of injured Liaquat Ali. As per the brief history available on MLC the injured was assaulted by one person. The name of assailant is not mentioned in the MLC. The history as informed by the injured has completely been mentioned on it.”

Aforementioned state of affairs makes it crystal clear that Liaquat Ali was beaten by one person whose name was not told by him while giving his history to the Medical Officer at **12:00/01:00 p.m. on 31.08.2020 and he was medically examined at 03:10 p.m.**; meaning thereby that case of prosecution that the injured received injuries at 10:30 a.m. on 31.08.2020 has been negated by Liaquat Ali before the Medical Officer at the time of giving history, in which he clearly stated that he was given beating at 12:00/01:00 p.m., therefore, this situation leads to the conclusion that Liaquat Ali did not receive injuries in the occurrence which took place at 10:30 a.m. in which Fozia Bibi received the injuries and for the said reason, Rapt No.14 (mentioned in MLC) has not been brought on the record by the prosecution.

It is also important to mention here that the injury statement of Liaquat Ali {Ex.PP (copy whereof is available at Page No.180 of the Paper-Book)} shows that Liaquat Ali came to the Police Station, stated over there that he has been injured by Karamat Ali (Note: parentage and other particulars of said Karamat Ali were not mentioned therein), he wants to obtain his medical result, said injury statement was prepared with reference to Rapt No.14 dated: 31.08.2020 by Sarfraz Ahmad 225/HC, Moharrar of Police Station: Mangtanwala (PW-2). Now on the one hand, this document i.e. injury statement (Ex.PP) negates the stance mentioned in the application for registration of the case that Liaquat Ali and Fozia Bibi in severe injured condition were got boarded on vehicle of 1122 and taken to DHQ Hospital, Nankana Sahib and from where Liaquat was referred to Jinnah Hospital, Lahore because according to this document i.e. Ex.PP, Liaquat Ali himself came to the Police Station and asked that during quarrel, he has been injured and he wants to get his medical result and from there he was sent to the hospital and in said injury statement (Ex.PP), it has not been mentioned that

Liaqat Ali stated that Fozia Bibi was also injured in the occurrence and while saving her, he has received injuries or Fozia Bibi has succumbed to the injuries/died, so said document (Ex.PP) has negated the case of the prosecution mentioned in the application for registration of the case (Ex.PB), whereas, on the other hand, Sarfraz Ahmad 225/HC, Moharrar of Police Station: Mangtanwala while appearing as PW-2 did not depose even a single word regarding preparing of said injury statement i.e. Ex.PP, therefore, same could not be duly proved.

Muhammad Amin (complainant/PW-3) was husband of Fozia Bibi (deceased of the case) but he did not intervene for saving his wife although assailants were not equipped with any sophisticated firearm weapon. So much so, even after fleeing away of the assailant from the place of occurrence, if complainant and other cited eye witnesses managed Fozia Bibi in injured condition or helped her for boarding in the vehicle of 1122, then their clothes might had stained with blood but bloodstained clothes of complainant or any other cited eye witness have not been produced. It was case of the prosecution that Fozia Bibi was going to the tube-well of Niamat Bhatti for washing the clothes but said clothes, soap, detergent for washing the clothes or any other material, which is used for washing the clothes was not secured from the place of occurrence and neither mentioned in the application for registration of the case nor in site plans of the place of occurrence.

Muhammad Amin (complainant/PW-3) also made dishonest improvements regarding the locale of injuries sustained by Fozia Bibi (deceased of the case); relevant portions of statement of PW-3 are hereby reproduced as follows:-

“I have got mentioned in Ex.PB the name of parts of body where Fozia deceased received injuries. It is incorrect to suggest that I have not mentioned the parts of body where Fozia deceased received injuries. Confronted with Ex.PB where it is not so recorded.”

“It is correct that in Ex.PB I have not mentioned the billiard shop.”

Liaqat Ali (injured/PW-4) also made dishonest improvements regarding the locale of injuries sustained by him and relevant portion of his statement in this regard is hereby reproduced as follows:-

“I had got recorded the locale of injuries in my statement recorded by the police confronted with Ex.DB where locale of injuries has not been mentioned.”

By now it is well settled that witness who introduces dishonest improvement or omission for strengthening the case, cannot be relied; in this regard, case of “**MUHAMMAD ARIF versus The STATE**” (2019 SCMR 631) and “**KHALID MEHMOOD and another versus The STATE and others**” (2021 SCMR 810) can be advantageously referred.

Muhammad Amin (complainant/PW-3) clearly stated that they were not previously acquainted with Karamat Ali; relevant portion of his statement in this regard is hereby reproduced as under:-

“It is incorrect to suggest that we have restrained Fozia Bibi from contacting Karamat accused. PW volunteers that we were not previously acquainted with Karamat.”

Complainant further denied that Fozia Bibi filed application under Section: 22-A, B Cr.P.C.; relevant portion of statement of Muhammad Amin (complainant/PW-3) is hereby reproduced as under:-

“It is incorrect to suggest that Fozia Bibi had filed a petition u/s 22A/22B in the court of Tariq Javed ASJ on 20.03.2020. It is incorrect to suggest that I am intentionally concealing the fact about filing the petition u/s 22A/22B Cr.P.C.”

Complainant (PW-3) has denied this admitted fact because Fozia Bibi filed application under Section: 22-A, B Cr.P.C. against the complainant (copy whereof is available on the record as Ex.DB/1 at Pages No.189-190 of the Paper-Book) for having protection against him. Muhammad Amin (complainant/PW-3) further denied regarding recording of statement by Fozia Bibi in said case in the court; relevant portion of his statement in this regard is hereby reproduced as follows:-

“I had got mentioned about abduction of Fozia Bibi in Ex.PB. Fozia had not got recorded any statement in court in the above said abduction case.”

but this was also denial of the admitted fact by the complainant because Fozia Bibi had got recorded her statement in the court (copy of the statement of Fozia Bibi in this regard is available at Pages No.203-204 of the Paper-Book as Ex.DF) and relevant portion of the same is hereby scanned below:-

Before recording of the statement of abductee, all the police officials and unconcerned persons were send out of the court room.

STATEMENT OF FOZIA BIBI WIFE OF MUHAMMAD AMIN CASTE CHABAIL, AGE ABOUT 36 YEARS AND R/O MALIWAL PO BOX KHAS TEHSIL AND DISTRICT NANKANA SAHIB.

Stated that I have not been kidnapped/abducted by any one and no one has committed Zina with me. I have left the house of my husband after quarreling with him and started residing in the house of my maternal ant namely Nasreen. I want to live in the house of my maternal ant. My husband has got registered instant case FIR due to some misunderstanding.

Note:-

All the above said proceedings in the instant application were conducted in Urdu language, and the same is dictated by me to my stenographer in English language.

CERTIFICATE

It is hereby certified that today i.e. 20.04.2019 the statement under section 164 Cr.P.C of Abductee FOZIA BIBI WIFE OF MUHAMMAD AMIN CASTE CHABAIL, AGE ABOUT 36 YEARS AND R/O MALIWAL PO BOX KHAS TEHSIL AND DISTRICT NANKANA SAHIB has been recorded word by word uttered by her and all the impression of undue influence and coercion has been ruled out and this court is satisfied that the said statement has been recorded without any impression of undue influence and coercion.

By now it is well settled that if any witness denies the admitted fact, then his evidence cannot be believed, in this regard, guidance has been sought from the case of **“THE STATE versus IQBAL and 3 others ” (1986 P.Cr.L.J. 215) [Lahore].**

It is very much important to mention here that Liaqat Ali (PW-4) clearly stated before the court that he was having no acquaintance with Karamat accused prior to the occurrence and relevant portion of his statement in this regard is hereby reproduced as under:-

“I have no acquaintance with Karamat accused prior to the occurrence.”

(emphasis added)

So much so, Allah Ditta (PW-6) stated before the court that he was having no acquaintance with Karamat accused prior to the occurrence and relevant portion of his statement in this regard is hereby reproduced as under:-

“I was not acquainted with Karamat prior to the occurrence.”

(emphasis added)

so if they were not acquainted with Karamat Ali, then it was necessary for them to mention features of the assailant i.e. Karamat Ali in the application for registration of the case as well as their statements during investigation to identify him during identification parade on the basis of features including facial features, which exercise has not been undertaken by the prosecution.

It goes without saying that Muhammad Amin (complainant/PW-3) admitted during his statement before the court that his real brother Muhammad Tufail sworn affidavit in respect of compromise on 15.04.2020; relevant portion of his statement in this regard is hereby reproduced as follows:-

“It is correct that an affidavit was sworn by my real brother Muhammad Tufail in respect of compromise on 15.04.2020.”

copy of said affidavit is available at Page No.198 of the Paper-Book as Ex.DE and relevant portion of the same is hereby scanned below:-

بیان حلفی / ضمانت نامہ

من حلف مسمی محمد طفیل ولد محمد ابراہیم قوم چنبیل ساکن مایوال ڈاکخانہ خاص تحصیل وں روہڑ گواہان حلفا بیانی ہوں،

1- یہ کہ من حلف کے برادر حقیقی محمد امین نے فو زیہ بی بی کی بابت بیان حلفی اہتمام نمبر 1340 مورخہ 15-04-2020 بجن کاٹان دیا ہے جسکی من حلف تائید و تصدیق کرتا ہوں۔

2- یہ کہ من حلف نے فو زیہ بی بی کی جانب سے الزام "کہ امین اسے گھریا کر قتل کر دیا" کی من حلف نے تسلیم کر لی ہے۔ جو کہ حقیقت پر مبنی ہے۔ البتہ من حلف نے برادر محمد امین کو فو زیہ بی بی کے قتل کے اقدام سے سختی سے روکا ہے جسکی برادر امین نے من حلف کو گارنٹی دی ہے۔

3- یہ کہ اگر من حلف کے برادر حقیقی محمد امین اہتمام نمبر 1340 مذکور کی خلاف ورزی کرے، فو زیہ بی بی کو قاتل قتل کرے یا کسی سے کروائے تو من حلف محمد بیٹین ولد علم دین قوم کھوکھر سکندہ سرفراز نگر، پھولنگر ضلع قصور جو کہ محمد منشاء کا داماد ہے کو 1000000/- (دس لاکھ) روپے ہرجانہ ادا کروں گا۔ جسکی گارنٹی کے طور پر من حلف بجن محمد بیٹین مذکور پر نوٹ مالتی 1000000/- (دس لاکھ) روپے اپنے العبدات کے ساتھ آزاد مرئی سے دے رہا ہوں۔ جسے محمد بیٹین بذریعہ بنچائیت یا عدالت وصول کر سکتا ہے۔

4- یہ کہ کرامت ولد محمد منشاء کامو پائل نوکیاس نمبری 03054117880 جو کہ فو زیہ بی بی کے استعمال میں ہے واپس کروانے کا پابند ہوں۔ اگر رسم مذکور یہ کا فو زیہ بی بی غلط استعمال کرے یا کروائے تو من حلف 3 مہینہ وار ہوگا۔

مندرجات بیان حلفی من حلف کے علم و یقین سے درست و صحیح ہیں۔ کوئی امر پوشیدہ نہ ہے۔ حسب ضرورت بیان حلفی / ضمانت نامہ پے آؤا قرار نامہ معاہدہ بین دین قصور کرنے پر من حلف کو کوئی عذر و اعتراض نہ ہے۔ مورخہ: 15-04-2020

المحلف
محمد طفیل حلف مذکور

ATTESTED
Usman Ali Jafar (Adv)
OATH OFFICER

تصدیق
قد قی کی جاتی ہے کہ
مندرجات بیان حلفی
میرے علم کے مطابق
درست و صحیح ہیں۔
تصدیق مقام بنکی۔
مورخہ: 15-04-2020
المحلف
محمد طفیل

and perusal of the same reflects that it was mentioned by Muhammad Tufail that Fozia Bibi has alleged that Muhammad Amin will murder her after taking her to home.

Liaqat Ali (PW-4) stated before the court that he got recorded his statement to the Police after one month of the occurrence and relevant portion of his statement in his regard reads as follows:-

“I have got recorded my statement to the police after one month of occurrence.”

It is important to mention here that he (Liaqat Ali/PW-4) was well oriented at the time of his medical examination and he was accompanied by Muhammad Yaqoob, S.I./Investigating Officer (PW-9), he gave history to the Doctor regarding receiving of injuries by him but did not record his statement to the Investigating Officer though he was very much in a position to make statement, and got recorded his statement after one month of the occurrence and by now it is well settled that if statement of the witness is

recorded with delay, then it diminishes its evidentiary value; in this regard, cases of “**MUHAMMAD KHAN versus MAULA BAKHSH and another**” (1998 SCMR 570), “**BASHIR MUHAMMAD KHAN versus The STATE**” (2022 SCMR 986) and “**KHIAL MUHAMMAD versus The STATE**” (2024 SCMR 1490) can be advantageously referred.

So prosecution could not establish that Liaqat Ali received injuries during the occurrence and at the place where Fozia Bibi received the injuries.

By now it is well settled that injured witness is not necessarily a truthful witness and he cannot be believed merely because he is having stamp of injuries on his body; in this regard, guidance has been sought from the case of “**MUHAMMAD HAYAT and another versus THE STATE**” (1996 SCMR 1411).

Allah Ditta (PW-6) stated in categorical terms that he got recorded his statement to the Investigating Officer at 08/09:00 a.m. on the day of occurrence at the place of occurrence, which shows that either he has not seen the occurrence which as per application for registration of the case (Ex.PB) has taken place at 10:30 a.m. or occurrence has not taken place at 10:30 a.m. rather it has taken place before 08/09:00 a.m. In both the situations, testimony of Allah Ditta (PW-6) becomes doubtful. Allah Ditta (PW-6) further stated that they were present at the place of occurrence when application for registration of the case was drafted by Yaqoob Thanedar and Amin put his thumb impression on application Ex.PB; relevant portion of his statement in this regard is hereby reproduced as under:-

“We were present at the place of occurrence when the application Ex.PB was drafted by Yaqoob Thaneydar. Amin put his thumb impression on Ex.PB.”

and said portion of his statement negates the version of the prosecution that application for registration of the case (Ex.PB) was moved by Muhammad Amin (complainant/PW-3) at the Police Station. Allah Ditta (PW-6) also deposed in his statement that Police visited the place of occurrence at 10:30 a.m. and remained there for about half an hour on 31.08.2020; relevant portion of his statement in this regard is hereby reproduced as follows:-

“Police visited the place of occurrence at 10:30 am and remained there about half an hour on 31.08.2020. PW again said firstly the vehicle of 1122 came at the place of occurrence and after one hour of occurrence police reached there.”

It raises question mark on the entire case of prosecution that if Police reached at the place of occurrence at 10:30 a.m. then why case was not got registered then and there rather at 05:40 p.m.

Muhammad Yaqoob, S.I./Investigating Officer of the case while appearing as PW-9 before the court categorically stated that neither there was any billiard shop near the place of occurrence nor complainant party produced any evidence to show that deceased lady was going for washing the clothes and in this regard, relevant portions of statement of Muhammad Yaqoob, S.I. (PW-9) are hereby reproduced as under:-

“There is no billiard shop adjacent to the place of occurrence.”

“The complainant party did not produce before me in evidence any clothes for washing or any utensils for washing clothes i.e. surf, tub, brush, soap or any poli-then shopper or thhapi (تھاپی). I did not observe any of the above stated articles at the place of occurrence on my first visit.”

He (PW-9) further stated that occurrence took place within the territorial jurisdiction of Police Post Wazirpur falling within the area of Police Station Mangtanwala and one can easily reach at the place of occurrence within 05/10 minutes from said Police Post; relevant portions of his statement in this regard are hereby reproduced as under:-

“The instant occurrence took place within the territorial jurisdiction of police post Wazirpur falling within the area of Police Station Mangtanwala.”

“One can easily reach at the place of occurrence within 05/10-minutes from wazirpur police post.”

thus, it goes without saying that case was not registered promptly. Investigating Officer (PW-9) further stated that Liaqat Ali did not join investigation from 31.08.2020 to 02.10.2020; relevant portion of his statement in this regard is hereby reproduced as under:-

“It is correct that from 31.08.2020 to 02.10.2020 Liaqat injured PW did not join into investigation however he joined the investigation at Hospital which is not the part of record.”

As per ocular account, Fozia Bibi received injuries at 10:30 a.m., immediately call was made to 1122 and she was sent to DHQ Hospital, Nankana Sahib but she succumbed to the injuries on the way to the hospital but Dr. Anam Saleem (PW-8), who conducted postmortem examination over dead body of the deceased clearly stated that time between injury and death

was 4 to 6 hours; relevant portion of her statement is hereby reproduced as under:-

“Probable time between injury and death was 4 to 6 hours.”

meaning thereby that after receiving the injuries, she was not attended by any one at least for 4 to 6 hours and she died particularly when any kind of dressing of wound was not found on her body; relevant portion of statement of Dr. Anam Saleem (PW-8) in this regard is hereby reproduced as under:-

“I have not observed any kind of dressing of wounds.”

So much so that any staff or record of Rescue-1122 was not produced to prove her shifting from spot.

Aforementioned state of affairs clearly leads to the conclusion that ocular account produced by the prosecution in this case is neither truthful nor reliable, hence same is hereby discarded.

As far as medical evidence is concerned, it is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury, duration of the injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same neither can provide any corroboration nor is of any help to the prosecution in peculiar facts and circumstances of the case and in this regard guidance has been sought from the case of **“MUHAMMAD RAMZAN versus The State” (2025 SCMR 762)**, relevant portion from the case law is as under:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant.”

As far as recovery of knife (P-1) from the appellant on 20.09.2020 is concerned, suffice it to say that as per recovery memo (Ex.PC), it is not mentioned therein that said knife was bloodstained. Occurrence took place on 31.08.2020 and said recovery was made on 20.09.2020. So, appellant was having sufficient time after the occurrence to wash and destroy said knife. It was even otherwise not got recovered from exclusive possession of the appellant rather from sugarcane field. Though as per report of Punjab Forensic Science Agency (Ex.PS-1/Ex.PS-1/1, copy whereof is available at Pages No.52-53 of the Paper-Book), swab taken from the knife was having

human blood but on the one hand it was not mentioned in the recovery memo that knife was bloodstained whereas on the other hand parcel of bloodstained soil was also available there at the time of examination but grouping of blood of the deceased was not compared with the blood available at blade of knife, therefore, such recovery is of no consequence; in this regard, case of “**MUHAMMAD ASIF versus The STATE**” (2017 SCMR 486) can be safely referred; relevant portion from said case law is hereby reproduced below: -

“18. Before parting with this judgment, we deem it essential to point out that, mere sending the crime weapons, blood stained to the chemical examiner and serologist would not serve the purpose of the prosecution nor it will provide any evidence to inter link different articles.

19. We have noticed that the Punjab Police invariably indulge in such a practice which is highly improper because unless the blood stained earth or cotton and blood stained clothes of the victim are not sent with the same for opinion of serologist to the effect that it was human blood on the crime weapons and was of the same group which was available on the clothes of the victim and the blood stained earth/cotton, such inconclusive opinion cannot be used as a piece of corroboratory evidence. Therefore, copy of this judgment be sent to the Prosecutor General, Punjab, and Chief Incharge of Investigation, Punjab Provincial Police to issue instructions to the investigating agencies in this regard.”

Guidance in this regard has also been sought from the case of “**KHALID JAVED and another versus THE STATE**” (2003 SCMR 1419) and relevant portion from said case law is hereby reproduced below: -

“Thus its result would be that on discarding the said portion of the statement incorporated in the recovery memos, the prosecution is left only with the recoveries of dagger and Churri Article P.7 and P-19 and now the burden is upon it to prove through other evidence that these articles being crime weapons were used for the murder of deceased. This could not be done without matching the stains of blood allegedly available on these articles. One may pose a question to himself as to that how would it be possible for the prosecution to match the blood group of deceased with the blood available on these articles because these articles were recovered on 28-2-1993 and 3-3-1993 respectively from appellants whereas deceased was buried on 10th February, 1993. The answer to this query is that at the time of post-mortem the concerned Doctor should have got determined her blood group from Chemicals Analyser for future use during investigation and trial of the case. Such practice can be adopted invariably in all the criminal cases.”

By now it is well settled that if recovery witness is the eye witness then his testimony cannot provide any corroboration to the ocular account because he cannot provide any corroboration to his own testimony; in this

regard, guidance has been sought from the cases of “Mst. SUGHRA BEGUM and another vs. QAISER PERVEZ and others” (2015 SCMR 1142) and “Mst. RUKHSANA BEGUM and others versus SAJJAD and others” (2017 SCMR 596). In above scenario, recovery of knife is of no help to the case of prosecution.

As far as motive for the occurrence is concerned, as per case of prosecution, it was alleged that earlier the complainant got lodged FIR No.321/2020 under Sections: 376, 396-A PPC at Police Station: Mangtanwala. However, it is worth mentioning here that on the one hand, it was mentioned by the complainant himself in the application for registration of the case that compromise took place between the parties in the same; relevant portion of application for registration of the case (Ex.PB) is hereby scanned below:-

یہ اوجہ عنادیہ ہے کہ کرامت علی کے خلاف قبل ازیں میں نے مقدمہ نمبر 321/20 مجرم 376/496A تپ تھانہ مانگٹانوالہ درج کروایا تھا جو کہ بعد میں ہماری صلح ہو گئی تھی۔

whereas on the other hand, it is relevant to mention here that Fozia Bibi made statement in said case that she was not abducted by anyone and relevant portion of her statement in this regard is hereby scanned below:-

Before recording of the statement of abductee, all the police officials and unconcerned persons were send out of the court room.

STATEMENT OF FOZIA BIBI WIFE OF MUHAMMAD AMIN CASTE CHABAIL, AGE ABOUT 36 YEARS AND R/O MALIWAL PO BOX KHAS TEHSIL AND DISTRICT NANKANA SAHIB.

Stated that I have not been kidnapped/abducted by any one and no one has committed Zina with me. I have left the house of my husband after quarreling with him and started residing in the house of my maternal ant namely Nasreen. I want to live in the house of my maternal ant. My husband has got registered instant case FIR due to some misunderstanding.

Note:-

All the above said proceedings in the instant application were conducted in Urdu language, and the same is dictated by me to my stenographer in English language.

CERTIFICATE

It is hereby certified that today i.e. 20.04.2019 the statement under section 164 Cr.P.C of Abductee FOZIA BIBI WIFE OF MUHAMMAD AMIN CASTE CHABAIL, AGE ABOUT 36 YEARS AND R/O MALIWAL PO BOX KHAS TEHSIL AND DISTRICT NANKANA SAHIB has been recorded word by word uttered by her and all the impression of undue influence and coercion has been ruled out and this court is satisfied that the said statement has been recorded without any impression of undue influence and coercion.

And when Fozia Bibi had given statement in court in said case that neither anyone abducted her nor anyone had committed rape with her, then there was no question of having any grudge of Karamat Ali with said lady, who has not given statement against him rather has given statement in his favour. So motive alleged by the complainant does not appeal to prudent mind rather affidavit of Muhammad Amin (complainant/PW-3) is available at Page No.195 of the Paper-Book as Ex.DD in which he clearly stated that he had himself expelled his wife after beating her and application given by him regarding abduction of his wife against Karamat Ali, etc. was false and baseless; relevant portion of the same is hereby scanned below:-

بیان حلفی
 نالت / راضی نامہ حقیقی زوج

مستند مسیحی محمد امین ولد محمد امیر اہم قومی جیل ساکن حلیوال، ڈیڑھ گھنٹہ خاص
 وضع منعکس نہ صاحب کار ہستی ہوں۔

(1) یہ کہ حلفاً بیان کیا کہ مورخہ 19/03/2022 کو بوقت قریب 10 بجے دن میری بیوی فوڑیہ بی بی کے ساتھ کھڑے ہو کر ناچا گئی تھی بنا پر لڑائی جھگڑے ہوئے تھا اور میں نے اپنی بیوی کو سارے گھر سے نکال دیا تھا اور آج مورخہ 20/03/2022 کو روج برو ہما گیت پرانہ کی وٹھ دیان محمد آصف ولد غفور، حاجی عنایت بزدار، محمد منشاہد عیسیٰ، محمد علی، ملک منیر عرف، دیو و گیت، مرزا محمد آصف، دیو و گیت، محمد عیسیٰ عسکری، محمد علی، کو لٹا کر قتل کر کے اپنی بیوی کو اپنے گھر آباد کرنے کے لیے اپنے گھر لے جا رہا ہوں۔

(2) یہ کہ حلفاً بیان کیا کہ میں نے تھانہ مانٹلی فور میں اپنی بیوی کی اغوا کی درخواست پر خلاف کرامت علی محمد اقبال، دیو بینہ بی بی، ہسٹن انڈسٹریل منشاہد بابت مقدمہ چلوان کرتے کرتے ڈرگنگر کی گئی ہے جو کہ جھوٹی اور بے بنیاد ہے اور اس کی درخواست پر کسی قسم کی کارروائی نہیں کی گئی ہے اور اپنی بیوی کو اپنے گھر لے جانے کے لیے کسی کو بھی خلاف مقدمہ بازی کروں یا اپنی بیوی کو مافوق کی قسم کے ریلوے کروں تو میرے خلاف قانونی کارروائی کو نامہ میں اصرار ہے اور نالت کو 10 لاکھ روپے جرمانہ ادا کرنے کا پابند ہو گا جس کے بابت نالت کو پروٹوٹ پر اپنی جیسی وجوہ اس کے لئے تیار ہے۔

الحلف
 محمد امین ولد محمد امیر

ATTESTED
 Usman Ali Qafar (Adv)
 OATH COMMISSIONER

قسم لیں
 قسم لیں کہ جیسی کہ
 بیان حلفی یا قسم
 و درجہ جیسی کہ
 مورخہ 20/03/2022

In view of above, motive alleged in this case could not be established by the prosecution.

9. It is well established principle of law that single dent/ circumstance in case of prosecution is sufficient for acquittal; in this regard, case of “**ABDUL GHAFUOR versus The STATE**” (2022 S C M R 1527) can be safely referred.

10. In the instant case after examining the prosecution case from all corners and evaluating it on the touchstone of principle of “safe

administration of criminal justice”, this Court has arrived at the conclusion that prosecution has miserably failed to establish its case against the appellant beyond shadow of doubt. As prosecution has failed to prove its case against the appellant, therefore, there is no need to discuss defence version.

11. Resultantly, instant appeal bearing **Crl. Appeal No.5394/2022**, filed by Karamat Ali (appellant), is allowed; conviction recorded and sentence awarded to the appellant through impugned judgment dated: 15.01.2022 is hereby set aside. Appellant is acquitted of the charge, he be released from jail forthwith, if not required in any other case.

Murder Reference No.12 of 2022 is answered in **negative** and death sentence awarded to Karamat Ali is not confirmed.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

APPROVED FOR REPORTING

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

This judgment has been dictated and pronounced on 02.06.2025 whereas after preparation, signed on 04.06.2025.

Asif